

2:00 PM

LINE: 3

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

**DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE**

**PRO SE
WILLIAM S. KRONENBERG**

PLAINTIFF DAWN CALVERT'S MOTION QUASH OR, IN THE ALTERNATIVE, TO MODIFY DEFENDANT'S SUBPOENAS FOR PRODUCTION OF RECORDS

TENTATIVE RULING:

Plaintiff's motion to quash was filed on January 9, 2026. At the time of filing, plaintiff did not provide proof that the moving papers were served on defendant. On February 10, 2026, plaintiff filed a proof of service indicating that documents were served on counsel for defendant by mail on January 10, 2026. However, the documents served were not identified. To date, plaintiff has not provided proof that the moving papers were on defendant.

However, on July 7, 2026, defendant filed and served opposition to the motion. Code of Civil Procedure section 1005 requires any opposition to be filed and served nine court days before the hearing date. Defendant's opposition was filed and served 7 court days before the hearing.

The court also notes that it was served on plaintiff electronically. Code of Civil Procedure section 1010.6, subdivision (c)(1) provides that an unrepresented party may consent to receive electronic service by serving notice on all parties and filing the notice with the court or by manifesting consent through electronic means with the court or the court's electronic filing service provider. Defendant has not established that plaintiff consented to electronic service.

The court will exercise its discretion to consider the untimely opposition. However, the motion is continued to August 13, 2026, to give plaintiff time to file a reply brief. No later than nine court days prior to the continued hearing date, defendant shall serve its opposition on plaintiff by overnight mail.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

2:00 PM

LINE: 4

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

DEFENDANT ANH TRUONG'S DEMURRER TO VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Anh Truong's Demurrer to Plaintiff Frank Kaul dba Swift Legal's Verified First Amended Complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND**, as follows:

When a court sustains a demurrer with leave to amend, the scope of leave ordinarily is limited to curing defects in the causes of action to which the demurrer was sustained. A plaintiff may not add a new cause of action without obtaining permission to do so unless the new claim falls within the scope of the order granting leave to amend. (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329; *People ex rel. Dept. Pub. Wks. v. Clausen* (1967) 248 Cal.App.2d 770, 785-786.) In the original Complaint, Plaintiff asserted claims against Defendant Truong, including a claim under the federal Racketeer Influenced and Corrupt Organizations Act ("RICO"). On March 5, 2026, the Court sustained Defendant Truong's demurrer "**as to all claims against Defendant Truong, WITH LEAVE TO AMEND.**" (Mar. 5, 2026 Minute Order, p. 6.) The FAC does not replead a RICO claim. Instead, it asserts against Defendant Truong only a new Fourth Cause of Action for Aiding and Abetting Fraud. (FAC, ¶¶ 56-67.) The Court's prior order did not authorize Plaintiff to add a new cause of action. The Fourth Cause of Action therefore exceeds the scope of the leave granted. Accordingly, Defendant Truong's Demurrer to the Fourth Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant Truong shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.